

SOFTWARE LICENSE AGREEMENT BETWEEN NEXUS PARTNERS INC. AND PINNACLE ASSOCIATES PVT. LTD.

Between: **Nexus Partners Inc.** (Licensor) and **Pinnacle Associates Pvt. Ltd.** (Licensee)

Effective Date: 2024-12-13

Termination Date: 2023-02-20

Governing Law: the laws of the State of Delaware

1. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

2. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware. Subject to Clause 1, the courts of Bengaluru shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

3. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 85,00,000 (Rupees Eighty-five lakh Only). This limitation does not apply to obligations arising from Clause 1 or indemnification obligations.

4. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

5. Term

This Agreement shall commence on the Effective Date, 2024-12-13, and shall continue until 2023-02-20, unless earlier terminated in accordance with Clause 3. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

6. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Nexus Partners Inc. shall process personal data of Pinnacle Associates Pvt. Ltd.'s employees or customers only as necessary to perform the Services and strictly in accordance with Pinnacle Associates Pvt. Ltd.'s written instructions. Nexus Partners Inc. shall implement appropriate technical and organisational measures to protect such data.

7. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this software license Agreement dated 2024-12-13 between Nexus Partners Inc. and Pinnacle Associates Pvt. Ltd.. "Services" means the services described in Clause 5. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

8. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

9. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

10. Insurance

Nexus Partners Inc. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 85,00,000 (Rupees Eighty-five lakh Only) per occurrence; (b) public liability insurance as required by applicable law. Nexus Partners Inc. shall provide evidence of such insurance upon request.

11. Audit Rights

Pinnacle Associates Pvt. Ltd. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Nexus Partners Inc.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Nexus Partners Inc.'s operations. The cost of the audit shall be borne by Pinnacle Associates Pvt. Ltd., unless the audit reveals an overcharge of more than five percent (5%), in which case Nexus Partners Inc. shall bear the cost.

12. Termination

Either Party may terminate this Agreement by giving 60 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Pinnacle Associates Pvt. Ltd. shall pay for all Services rendered up to the date of termination.

13. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

14. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

IN WITNESS WHEREOF

Licensor

Nexus Partners Inc.

Signature: _____

Name: _____

Title: _____

Date: _____

Licensee

Pinnacle Associates Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____